

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 10.24.190, CRITICAL TRAFFIC CONTROL AREAS; CREATION AND ADMINISTRATION; ENHANCED PENALTIES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, MODIFYING THE PROVISIONS GOVERNING THE CREATION AND ENFORCEMENT OF SUCH AREAS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.24.190, Critical Traffic Control Areas; Creation and Administration; Enhanced Penalties, of Chapter 10.24, Rules of the Road Generally, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, is amended to read:

10.24.190 - Critical traffic control areas; creation and administration; enhanced penalties.

- A. There is created the critical traffic control program, which shall be empowered to designate one (1) or more critical traffic control areas in the city of Cheyenne as provided in this section. The program shall be administered by the program committee in accordance with this section, which committee shall be composed of the mayor or his or her designee, the city engineer or his or her designee, and the chief of police or his or her designee. The objective of the program shall be to identify areas in the city with unsafe or unlawful traffic speeds or other behaviors and to implement appropriate temporary remedial measures to address those behaviors.
- B. ~~No~~ A critical traffic control area ~~shall~~ may only be designated under the program ~~except as provided in this~~ in accordance with subsection (C) of this section and only after the receipt of a critical traffic control program complaint. The complaint shall be signed by not less than five (5) residents of the area that is the subject of the complaint, which residents shall represent different businesses or households affected by the alleged unsafe or unlawful traffic speeds or behaviors. Complaint forms shall be made available to the public by the city engineer. Any complaint submitted under this subsection shall specifically identify the unsafe or unlawful traffic speeds or behaviors that are of concern to the residents.
- C. The program committee shall review and evaluate the merits of any traffic control program complaint submitted in accordance with subsection (B) of this section. Should the committee determine the complaint has merit, the city engineer shall order a traffic study for the affected area, the results of which shall be submitted to the committee not less than fourteen (14) days after the date that the study was initiated. If the city engineer ordered a study to evaluate vehicle speeds, the study period shall include not less than two (2) weekdays and not less than one (1) weekend Saturday as data gathering points. In addition, a crash history for not less than the previous five (5) years shall be obtained and a crash data analysis shall be developed and summarized. If the results of the study substantiate the complaint, the program committee may designate the affected area as a critical traffic

control area. Nothing in this subsection shall be construed to prohibit the city engineer from commissioning a third-party professional engineer to complete the traffic study required under this subsection.

- D. Upon the designation of any critical traffic control area as provided by subsection ~~(C)~~(B) of this section and subject to the requirements of subsection (F), the program committee may implement appropriate temporary remedial measures to address the unlawful traffic speeds or other behaviors including:
1. Establishing enhanced fines for speeding violations within the designated area, which fines shall be two (2) times the amount of the fine that would be imposed for the same violation in the same or similar area but for the traffic control area designation. If enhanced fines are implemented, proper signage shall also be installed to provide reasonable notice to drivers, which signage shall identify the beginning and end points of the critical traffic control area. An enhanced fine imposed under this paragraph is mandatory and may only be reduced by a municipal court judge as follows:
 - a. ~~after the court specifically finds~~ Upon a specific finding that the defendant has no ability to pay the full fine amount and that no reasonable probability exists that the defendant will have an ability to pay the full fine amount;
 - b. Upon completion of a defensive driving course but only if the defendant has previously maintained a motor vehicle record free of moving violations and the prosecutor first consents; or
 - c. The defendant is entitled to a fine reduction under W.S. 31-5-1402(e).
 2. Installation of additional traffic control devices, including driver feedback radar signs, traffic control signals or traffic calming devices;
 3. Increased law enforcement presence for the purpose of strictly enforcing traffic laws, which increased presence may be incentivized through the authorization of overtime to be offered to police officers; and
 4. Any other appropriate temporary measures the committee determines may address the unsafe or unlawful traffic behaviors.
- E. Any critical traffic control area designated under this section shall be reevaluated by the program committee not more than ~~fourteen (14)~~thirty (30) days after the implementation date of any temporary remedial measures to determine if the measures ~~are still appropriate under the circumstances. Should the committee determine the unsafe or unlawful traffic behaviors have been corrected, the critical traffic control area designation shall terminate and the measures implemented in accordance with this section shall be removed. Should~~ remain appropriate or should be modified or terminated. Record of the program committee's revaluation shall be filed in accordance with subsection (F) of this section. The program committee's failure to meet within the required thirty (30) days shall not affect

~~the validity of the critical traffic control area or the enforcement authority for any enhanced fine implemented under paragraph (D)(1) of this section. If the committee determine that the temporary remedial measures should be modified or continued, modifies or continues the remedial measures, the area shall again be reevaluated by the program committee not more than fourteen (14) thirty (30) days after the implementation date that the measures were most recently modified or continued. Any Except for enhanced fines under paragraph (D)(1) of this section, any remedial measure otherwise implemented under this section may be instituted on a made permanent basis when necessary to maintain the public safety of the previously designated critical traffic control area and if made permanent, shall not be subject to the reevaluation requirements imposed by this subsection.~~

F. Upon the designation of a critical traffic control area and the implementation of any temporary remedial measures under subsections (C) and (D) of this section, or the modification or termination of an existing area under subsection (E), the program committee shall file a record of the action with the city clerk using a standardized form. The form shall specify the remedial measures to be implemented, continued or modified and further state the effective date for the implementation, continuance or modification of applicable remedial measures. If a designation is terminated, the form shall specify the effective date of the termination. Upon receipt of a record of action form under this subsection, the city clerk shall provide a copy to the chief of police or his or her designee for the purposes of enforcement.

~~F.—G.~~ Nothing in this section shall be construed to limit or otherwise affect the authority granted under title 10, chapter 10.68 of the city code or the authority of the city traffic engineer under section 10.12.130 of the city code.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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